

STATE OF VERMONT
SUPERIOR COURT
Unit

CRIMINAL DIVISION
Case No. 1276-11-24 FrCr

In RE: Maria-Alejandra O'Shaughnessy-Whitfield

DOB 1968-12-31

PETITION TO SEAL CRIMINAL HISTORY

The above-named Defendant hereby requests that the Court order that his/her criminal history record be sealed. As grounds for the request, Defendant hereby states as follows:

1. **Charges:** I am requesting that the criminal records for the following offense(s) be sealed:

	Description of Offense	Year	Docket Number (If Any)
1.	_____	_____	_____
2.	_____	_____	_____
3.	_____	_____	_____

If more than one offense is listed, the offenses must relate to the same incident.

2. **Record of Convictions:**

☐ I was convicted of the offenses.

If you were convicted, please provide the following about your conviction:

a. Date of conviction: _____

b. I completed all of the conditions of my probation:

☐ Yes – Date of Completion: _____

☐ No

c. Any restitution ordered by the Court has been paid:

☐ Yes

☐ No

☐ Restitution was not ordered

☒ I was **not** convicted for the offenses listed above.

If you were cited or arrested for the offense, but never convicted, answer the following questions and then skip to question 3.

☐ I was cited or arrested, by (name of arresting law enforcement agency or department)

_____, but a charge was never filed with the Court.

☐ A charge was filed, but the Court did not find probable cause.

☐ A charge was filed and later dismissed by the Court.

3. List any new charges or convictions you have received since the date of the offense listed in question 1.

Offense	Date of Offense	Date of Charge	Date of Conviction
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

4. I believe that sealing of my criminal history is in the interests of justice because:

5. If the petition is granted, the court will send a copy of the order to the defendant, the defendant's attorney, the prosecuting attorney's office, the Vermont Crime Information Center, the arresting agency, the Restitution Unit of the Vermont Center for Crime Victim Services, and the Department of Motor Vehicles if pertaining to a motor vehicle charge. If there are other state entities the court should notify, please list the agency name and address here:

State Agency

Address

Documents from Other Parties in the Case

I understand that the other parties in the case are required to provide me with a copy of all documents they file with the court. If I consent, the other parties may send me documents by email instead of by mail.

I consent to receive documents from the other parties at the email provided below:

☐ YES ☐ NO

Date of Signature

Signature of Defendant

Maria-Alejandra O'Shaughnessy-Whitfield

Printed Name of Defendant

1188 Upper Notch Crossing Road, Apartment 14B

Address

South Burlington, Vermont 05403-2214

City, State, Zip

(802) 555-0199 ext. 4417

Phone

maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Email Address

cc: State's Attorney or Attorney General's Office

STATE OF VERMONT

SUPERIOR COURT

Unit

CRIMINAL DIVISION

Case No. 1276-11-24 Frcr

In RE: Maria-Alejandra O'Shaughnessy-Whitfield

DOB: 1968-12-31

STIPULATION TO SEAL CRIMINAL HISTORY RECORD

We, the undersigned Defendant and State's Attorney, hereby agree that the offense(s) meet the requirements for sealing pursuant to 13 V.S.A. §7602 and that the Court may issue an Order to seal the criminal history record for the offense(s) described below:

Description of Offense	Date of Offense	Incident Number	Docket Number (if any)

We further understand that the effect of this Order will be to seal any records of arrest, conviction or sentencing for this/these offense(s) and that the Defendant will hereafter be treated in all respects as if he or she had never been arrested, convicted, or sentenced for the offense(s).

If the petition is granted, the court will send a copy of the order to the defendant, the defendant's attorney, the prosecuting attorney's office, the Vermont Crime Information Center, the arresting agency, the Restitution Unit of the Vermont Center for Crime Victim Services, and the Department of Motor Vehicles if pertaining to a motor vehicle charge. If there are other state entities the court should notify, please list the agency name and address here:

State Agency	Address

Documents from Other Parties in the Case

I understand that the other parties in the case are required to provide me with a copy of all documents they file with the court. If I consent, the other parties may send me documents by email instead of by mail.

I consent to receive documents from the other parties at the email provided below:

☐ YES ☐ NO

Defendant:

Date:

Signature

Printed Name Maria-Alejandra O'Shaughnessy-Whitfield

Mailing Address

1188 Upper Notch Crossing Road, Apartment 14B
South Burlington, Vermont 05403-2214

Phone Number (802) 555-0199 ext. 4417

Email Address maria.alejandra.oshaughnessy.whitfield@longmailexample.org

State's Attorney:

Date:

Signature

Printed Name

ORDER

Based upon the agreement of the Defendant and the State's Attorney and pursuant to 13 V.S.A. §7602, it is hereby ORDERED that criminal history record of the offense(s) described above be sealed.

All records related to the arrest, conviction or sentencing for this/these offense(s) shall be sealed and that the Defendant will hereafter be treated in all respects as if he or she had never been arrested, convicted of sentenced for the offense(s).

cc: State's Attorney
Arresting Agency
Diversion
DMV, if applicable
VCIC
Defendant
Defender General
Attorney General

STATE OF VERMONT

SUPERIOR COURT

DIVISION

Unit

Case No. 1276-11-24 Frcr

APPLICATION TO WAIVE FILING FEES AND SERVICE COSTS

<i>Case Name</i>	Maria-Alejandra O'Shaughnessy-Whitfield
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Name: *(First & Last)* Maria-Alejandra O'Shaughnessy-Whitfield

Street Address: 1188 Upper Notch Crossing Road, Apartment 14B

City/State/Zip: South Burlington, Vermont 05403-2214

Mailing Address: *(if different from street address)* _____

Email Address: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Home / Cell Phone: (802) 555-0199 ext. 4417 Work Phone: _____

Total Number Living in Household *(spouse, partner & dependents)* _____

Employment

Are you employed? ☐ Yes ☐ No *If Yes, list Employers' Name & Address*

Employer Name	Employer Address

Section 1: Public Assistance:

Do you receive any kind of government benefit that is based on need, dependent children, or other income sensitive criteria? ☐ Yes ☐ No

Type of Assistance: _____ Monthly Amount \$ _____

IF YOU RECEIVE ANY PUBLIC ASSISTANCE, YOU DO NOT NEED TO FILL OUT THE REMAINDER OF THE FORM. GO TO THE SIGNATURE AND DECLARATION SECTION ON THE BOTTOM OF PAGE 2.

Section 2: Income and Expenses

If you do NOT receive public assistance, fill out the following:

Income	Expenses
Your Current Monthly Income	Your monthly household expenses
Gross Income from Wages Unemployment \$ _____	Rent or Mortgage Payment \$ _____
Compensation \$ _____	Electric Service \$ _____
Child Support \$ _____	Phone \$ _____
Other Income \$ _____	Fuel <i>(heat and/or gas)</i> \$ _____
<i>(including Social Security Disability Income</i>	Food \$ _____
<i>("SSDI"), Disability Insurance & Social</i>	Clothing \$ _____
<i>Security retirement benefits)</i>	Medical \$ _____
Self-Employment/Business Income	Child Support \$ _____
<i>(other than wages)</i>	Auto Loan Payment \$ _____
Total Monthly Income \$ _____	Property Taxes \$ _____
Total Income in the past 12 months \$ _____	Insurance <i>(health, auto, etc.)</i> \$ _____
	Other Expenses \$ _____
	Total Expenses \$ _____

Section 3: Other Assets

I have additional assets: ☐ Yes ☐ No If Yes, describe them below

Vehicles	Make, Model, Year	Fair Market Value (FMV)	Amount Owed	Net Value
		\$	\$	\$
		\$	\$	\$
		\$	\$	\$
		\$	\$	\$
Real Property	Description	FMV	Mortgage	Net Value
		\$	\$	\$
		\$	\$	\$
Cash Assets				
	Cash on Hand	\$		
	Checking Account	\$		
	Savings Accounts	\$		
	Total Cash Assets	\$		
Other Assets	Description	FMV	Use additional sheets as necessary	
(examples - tools, equipment, recreational vehicles, electronics, stocks, bonds, etc.)				

Section 4: Additional Information

These are additional reasons why I cannot afford the fees:

I request the Court waive filing fees and/or pay service fees in this case because of my low income.

Section 5: Signatures and Declaration

I declare that the above statement is true and accurate to the best of my knowledge and belief. I understand that if the above statement is false, I will be subject to the penalty of perjury, or other sanctions in the discretion of the court.

Date

Applicant Signature

Maria-Alejandra O'Shaughnessy-Whitfield
Printed Name

PROCESS GUIDANCE, INCLUDING THE ROUTE THAT FILES NOTHING

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Case No.: 1276-11-24 FrCr

Route: Petition to Seal a Non-Conviction Record, 13 V.S.A. Sec. 7603

THREE ROUTES, AND THIS PACKET CARRIES ALL THREE

- an ordinary contested petition at any time (13 V.S.A. Sec. 7603(g)): Form 200-00130.
- a stipulated sealing at any time (13 V.S.A. Sec. 7603(a)(2)): Form 200-00132.
- no filing - process guidance: this page.

1. THE CONTESTED PETITION

File the petition (200-00130) with the Vermont Superior Court, Criminal Division, in the unit where your case was decided. The State's Attorney may oppose it and the court may set a hearing. This is the route that does not need anybody's agreement.

2. THE STIPULATED SEALING

If the prosecuting office will agree, sign the stipulation (200-00132) and take or send it to that office. The participant does not file the stipulation: the prosecutor signs and files it with the court. The court may then seal the record on that agreement.

If the State's Attorney will not sign, that is not the end of it. File the petition on its own and ask the court to set a hearing. The two routes use the same underlying facts and this packet prepares both.

3. THE ROUTE THAT FILES NOTHING

Some non-conviction records are cleared without a petition at all, and a packet that only ever told you to file would be telling you to do work you may not need to do. Before you file, ask the clerk of the unit above whether the record you are asking about has already been sealed, or is due to be, without a filing. If it has, nothing in this packet needs to be filed.

This page states no timetable and no criterion for that, because neither is established by the forms this packet is built from. The clerk of the unit is who can tell you where your own record stands.

NO FILING FEE ON THIS TRACK

There is no filing fee on this non-conviction sealing track. Under 32 V.S.A. Sec. 1431(e), the \$90 fee applies only to sealing a conviction for a violation of 23 V.S.A. Sec. 1201(a). This track does not seal a conviction.

Form 600-00228 is conditional only where a filing fee is actually charged and the participant cannot pay it. No fee is charged on this track, so do not complete or file the fee-waiver form for this petition.

NO PARTICIPANT SERVICE OF PROCESS

You do not serve the prosecutor with process. If you file the petition, the court provides a copy to the prosecutor. If you use the stipulation, take or send it to the prosecuting office; the prosecutor signs and files it with the court.

WHAT THIS PACKET IS NOT

This is a prepared set of official Vermont forms and this guidance page. It is not legal advice, it is not filed for you, and it does not decide whether the court will seal the record.

Route: sealing a record that did not end in a conviction (13 V.S.A. Sec. 7603)